

Mapping Regulatory Intermediaries

Why these three EU green-transition acts?

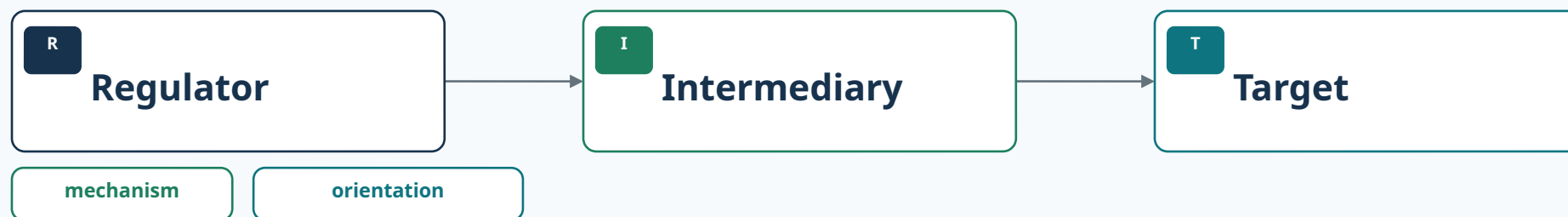
European Climate Law | CBAM | EUDR

A compact pilot set for testing the R-I-T architecture across climate governance, border-carbon compliance, and supply-chain due diligence.

Prepared for discussion with David Levi-Faur

From organizations to regulatory relationships

The analytical task is not to classify actors once and for all. It is to reconstruct a documented relation: who performs which regulatory function, over whom, through which mechanism.



- 1 Roles are relational, not permanent labels
- 2 A positive case needs textual evidence
- 3 Ambiguous cases remain ambiguous; they are not rounded up

A small set with high analytical contrast

The three acts were chosen because they allow the same R-I-T codebook to be tested across different architectures of green-transition regulation.



European Climate Law

CELEX 32021R1119

5 relations

Macro-governance: targets, reporting, scientific advice.



CBAM

CELEX 32023R0956

9 relations

Compliance infrastructure at the border: verification, accreditation, customs.



EUDR

CELEX 32023R1115

6 relations

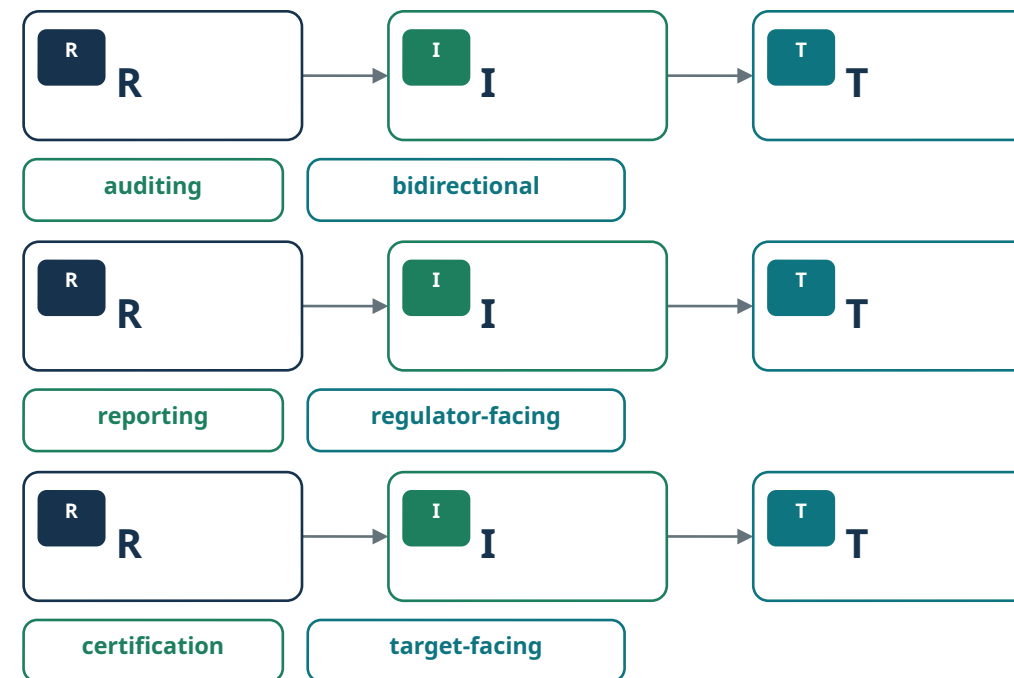
Supply-chain due diligence: traceability, complaints, customs, licensing.

Important caveat: this is a pilot selection, not a population definition. The broader universe should not be defined by the prior presence of intermediaries.

What is recorded for each regulatory relation

Each row is a documented episode of regulation.

- Regulator: actor holding or exercising regulatory authority
- Intermediary: actor translating, verifying, transmitting, or supporting regulation
- Target: actor whose conduct or compliance is addressed
- Mechanism: reporting, auditing, certification, or other instrument
- Orientation: regulator-facing, target-facing, or bidirectional



The relation is the unit of analysis. The actor is a position inside a relation.

European Climate Law - climate-governance backbone



Regulation (EU) 2021/1119 | CELEX 32021R1119

Why this case?

- Captures macro-level climate governance rather than operational compliance.
- Shows how scientific advice and environmental reporting feed the Commission.
- Useful baseline: few relations, clear institutional hierarchy, low market complexity.

5

relations

3

intermediated

2

direct

Observed mechanisms: reporting and other mechanisms, mainly scientific advice and comitology.

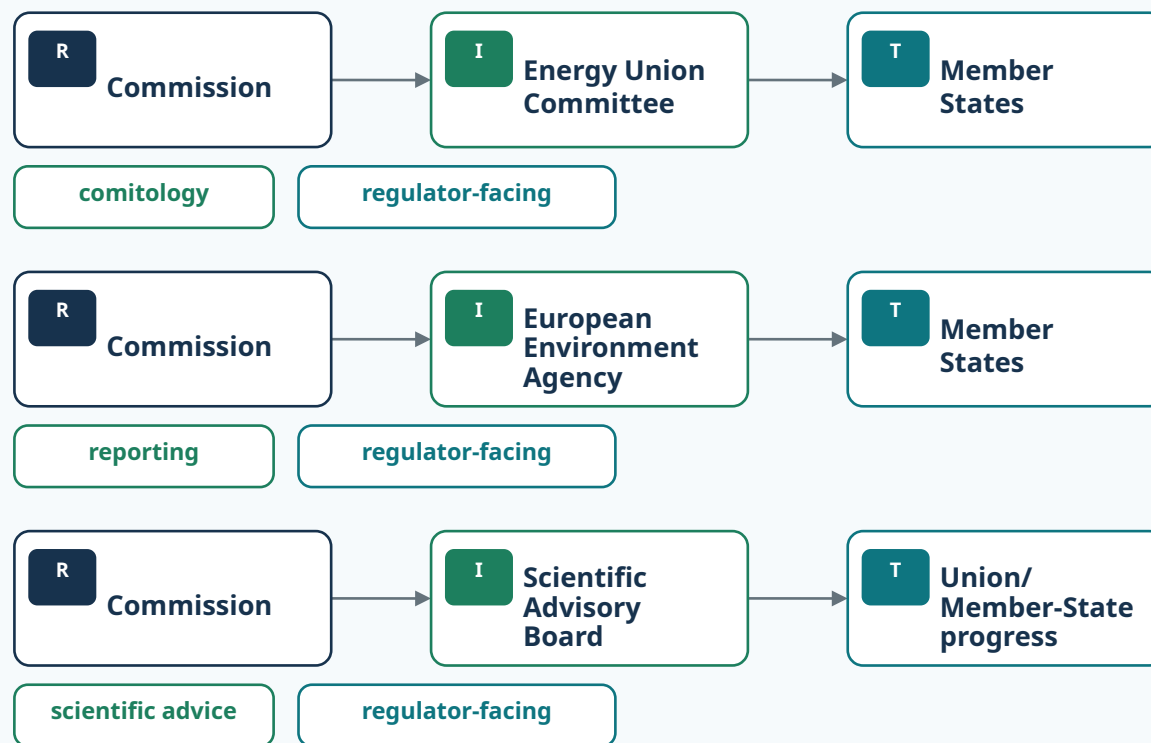
Regulator-facing intermediation dominates

Regulators

- European Parliament and Council
- European Commission

Targets

- Member States
- Relevant Union institutions



Interpretive note The intermediaries mainly strengthen the regulator's informational and epistemic capacity; they do not directly discipline targets.

CBAM - the densest regulatory architecture



Regulation (EU) 2023/956 | CELEX 32023R0956

Why this case?

- Combines climate policy, trade, customs, and industrial decarbonization.
- Makes compliance measurable through declarations, verification, accreditation, and penalties.
- Best stress test for the codebook: multiple actors shift roles across relations.

9

relations

5

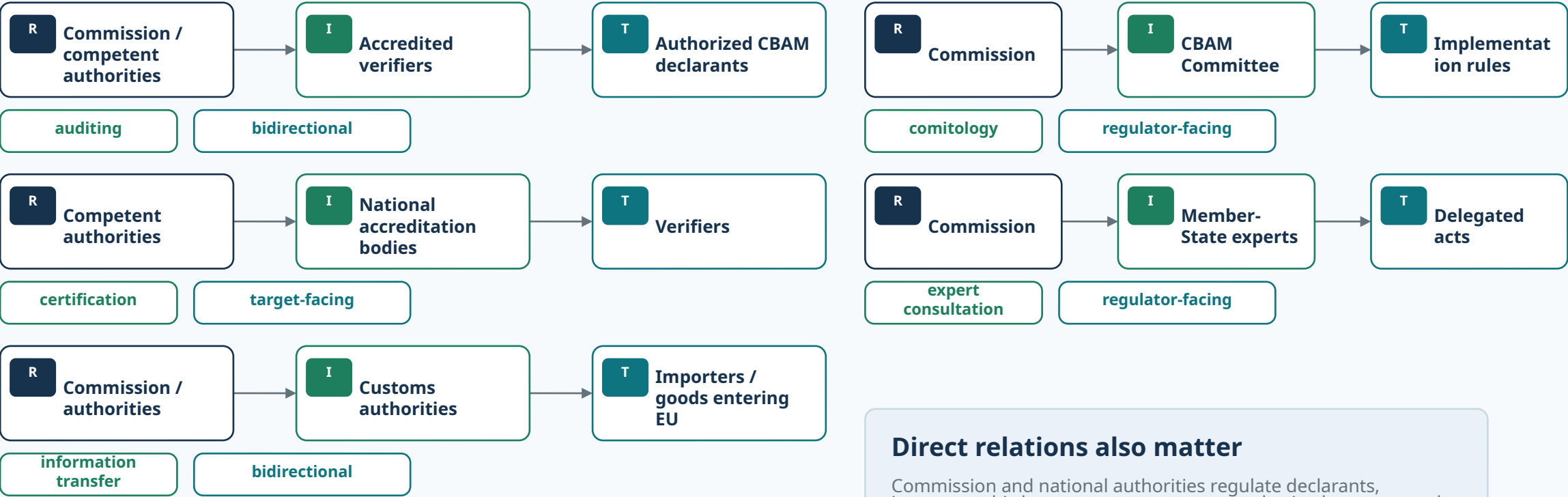
intermediated

4

direct

Observed mechanisms: auditing, certification, customs information transfer, comitology, and expert consultation.

Border-carbon regulation depends on a multi-actor compliance chain



Direct relations also matter

Commission and national authorities regulate declarants, importers, third-country operators, non-authorized persons, and exemption claims.

EUDR - supply-chain due diligence and traceability



Regulation (EU) 2023/1115 | CELEX 32023R1115

Why this case?

- Moves from emissions accounting to commodity-chain governance.
- Connects due diligence statements, customs control, risk classification, and substantiated concerns.
- Adds civil-society information channels and legacy licensing mechanisms.

6

relations

4

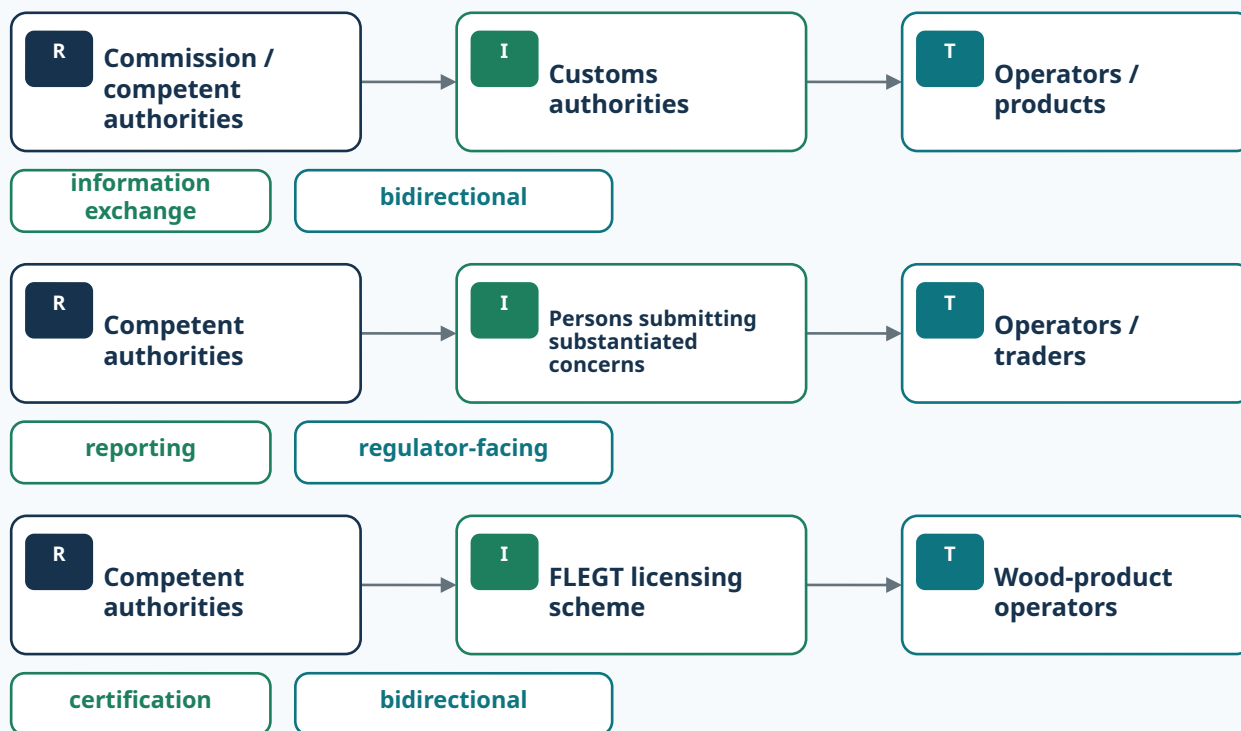
intermediated

2

direct

Observed mechanisms: reporting, certification, customs information exchange, and comitology.

Due diligence is translated through border, licensing, and complaint channels

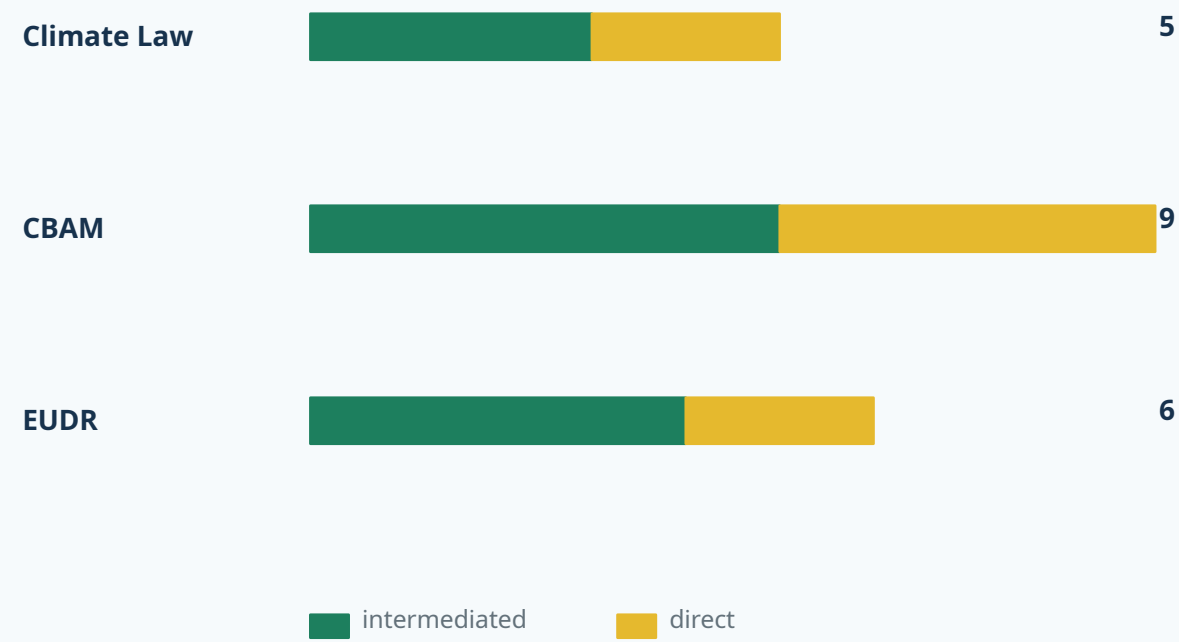


Direct relations

- Commission: country-risk classification and implementing architecture
- Competent authorities: checks, enforcement, and treatment of non-compliance

What the pilot set reveals

Number of final relations



Mechanism pattern



Transversal finding: comitology committees recur as regulator-facing intermediaries; customs authorities recur in CBAM and EUDR as border-information intermediaries.

What these cases allow us to discuss with David

The cases are analytically useful because they expose different ways in which regulation travels beyond the formal regulator.

- 1 Boundary problem** When does support to the regulator become regulatory intermediation, rather than ordinary internal administration?
- 2 Orientation problem** Some intermediaries face the regulator, some face targets, and some transmit information in both directions.
- 3 Population problem** The next study must define the universe independently from intermediary hits to avoid selection bias.
- 4 Scaling problem** The pilot can become a reproducible workflow only after freezing the sampling frame, codebook, evidence rules, and adjudication protocol.

Working proposition: the set is not representative; it is diagnostic. It helps refine the theory, the codebook, and the future population strategy.